

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Bashir Ullah

Civil Revision No. 234 of 2009

In the matter of:

An application under Section 115(1) of the Code of
Civil Procedure, 1908

And

In the matter of:

Md. Mojibur Rahman Khaleque

--- Petitioner.

-Versus-

Advocate Sarder Faruk Ahmed and others

---- Opposite party.

No one appears for either party.

Judgment on: 06.08.2023

This Rule was issued on 25.01.2009 calling upon the opposite party No.1 to show cause as to why the impugned order dated 26.11.2008 passed by the District Judge, Pirojpur in Miscellaneous Case No. 5 of 2008 should not be set aside, or such other or further order or orders passed as to this Court may seem fit and proper.

At the time of issuance of the Rule, operation of the impugned order dated 26.11.2008 was stayed and the District Judge, Pirojpur was directed to hear and dispose of Miscellaneous Case No.5 of 2008 within thirty days of receipt of this order positively and in the event of such disposal this Rule would be discharged and the stay would be vacated.

It is stated that the opposite party No. 1 was the Chairman of Paschim Pirojpur Krishi Samabaya Samity Limited and the petitioner Mojibur Rahman Khaleque was the Chairman of Shankarpasha Krishi Samabay Samity Limited. Both were candidates for the post of Chairman of the Managing Committee of Pirojpur Samabay Bank Ltd. The date of the Election of the Managing Committee of Samabaya Bank Limited was fixed on 02.08.08. The petitioner and opposite party No.1 submitted their respective nomination papers in due time for the post of Chairman and the date for scrutiny of nomination paper was fixed on 10.07.2008. During scrutiny, the opposite party No. 1 filed an objection stating that the petitioner was a bank defaulter but he could not submit any document showing such default and as such, his objection was rejected on 10.07.2008. Against the order dated 10.07.2008 the opposite party No. 1 filed Appeal No. 5 of 2008 before the Joint Registrar, Divisional Samabaya Office, Khulna. Upon hearing the Joint Registrar dismissed the appeal on 15.07.2008. Thereafter, the election was held on 02.08.2008 and the petitioner was elected as Chairman of the Managing Committee of the Samaby Bank Limited, Pirojpur. Being aggrieved the opposite party No. 1 filed Dispute Case No. 05 of 2008 before the Deputy Registrar (Bichar), Divisional Samabaya Office, Khulna. Upon hearing the Deputy Registrar allowed the said Dispute Case on 22.09.2008 and declared the petitioner as defaulter and the result of Election dated 02.08.2008

was considered void. Against the order dated 22.09.2008 the Petitioner filed Appeal No.14 of 2008 before the Joint Registrar, Divisional Samabay Office, Khulna. The Joint Registrar allowed the Appeal on 11.11.2008. Being aggrieved, the opposite Party No.1 as petitioner filed a Miscellaneous Case No.5 of 2008 in the Court of District Judge, Pirojpur praying for a declaration that the decision dated 11.11.2008 passed by the opposite party No. 2 in Miscellaneous Appeal No. 14 of 2008 is illegal and void.

The opposite party No.1 also filed an application under 39 Rule 1 read with section 151 of the Code of Civil Procedure before the District Judge, Pirojpur praying for injunction restraining the petitioner from functioning the Managing Committee as Chairman but the application was rejected on 24.11.2008.

Thereafter, on 26.11.2008 the opposite party No.1, filed another application praying for stay of the order dated 11.11.2008 passed by the opposite party No. 2. Upon hearing the District Judge, Pirojpur allowed the said application on 26.11.2008 and stayed the order dated 11.12.2008 passed in Appeal No. 14 of 2008.

Being aggrieved the petitioner filed the instant Civil Revision before this Court challenging the order dated 26.11.2008 passed by the District Judge, Pirojpur and obtained the Rule and stay.

No one appears for either party when the matter is called on for hearing. This is a very old matter of 2009. Meanwhile, 13 years have

passed and the matter is pending. It seems that the parties have lost their interest in the dispute. At this juncture, the Rule is taken up for disposal on merit.

This Court directed the learned Assistant Attorney General, Mr. MMG Sarwar to have information about the recent position of the original Miscellaneous Case. Accordingly, the learned Assistant Attorney General obtained information regarding the status of Miscellaneous Case No.5 of 2008 and brought to the Court's notice that Miscellaneous Case No.5 of 2008 was disposed of on 06.07.2010 by the District Judge, Pirojpur.

Since the Miscellaneous case has been disposed of by the District Judge, Pirojpur, this Rule has lost its efficacy and became infructuous.

Accordingly, the Rule is discharged as being infructuous. There will be no order as to costs.

The order of stay granted earlier by this Court is hereby recalled and vacated.

Communicate the judgment at once.

(Justice Md. Bashir Ullah)